

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

EPIC FREIGHT SOLUTIONS LLC and
OMNI LOGISTICS LLC,
RESPONDENTS.

**RESPONDENT OMNI LOGISTICS,
LLC'S AND RESPONDENT EPIC FREIGHT
SOLUTIONS LLC'S JOINT REPLY TO COMPLAINANT
TPG PRESSURE, INC.'S EXCEPTIONS TO THE INITIAL DECISION**

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Respondent Omni Logistics, LLC (“Omni”) and Respondent Epic Freight Solutions LLC (“Epic”) (collectively, “Respondents”), through counsel and pursuant to 46 C.F.R. § 502.227(a)(2), respectfully submit their reply to the exceptions of Complainant TPG Pressure, Inc. to the September 12, 2024 Initial Decision.

I. INTRODUCTION

The Presiding Officer’s Initial Decision signaled the beginning of the end of TPG’s failed efforts to obtain a refund of lawful detention and demurrage charges and to avoid paying Respondents’ outstanding invoices, the vast majority of which are comprised of freight charges. After nearly two years of litigation, with the benefit of months of voluminous, document-intensive discovery and extensive briefing by the parties, the Presiding Officer awarded TPG just a fraction of the total reparations TPG sought in its original Complaint. In almost all respects, the Initial Decision was well-reasoned and thorough. It rightly rejected TPG’s bold demands for a refund of detention, demurrage, and other charges that Respondents paid on TPG’s behalf. Nevertheless, TPG now continues its ever shifting, unsupported, and at times incoherent theories of alleged Shipping Act violations.

For instance, TPG inexplicably claims in its Exceptions to the Initial Decision (the “Exceptions Brief”) that it “produced evidence that there was a lack of appointments during the relevant period of time.” (Exceptions Brief at 4.) To the contrary, TPG never mentioned even a word about any alleged “lack of appointments” in its Opening Brief or Reply before the Presiding Officer. The Commission should disregard these arguments. TPG is also quite muddled about the relief TPG is seeking. On the one hand, TPG appears to claim that it is entitled only to an additional \$36,919.59 in reparations, “[t]he difference between Respondents’ claim for unpaid amounts as found by the ALJ, and the amount of demurrage that should have been found to be unjust and unreasonable.” (Exceptions Brief at 2.) On the other hand, however, TPG argues elsewhere in its

Exceptions Brief that “the ALJ should have found for TPG in total on the unreasonable detention and demurrage charges” (Exceptions Brief at 5), “the ALJ erred in failing to award full reparations for detention and demurrage, including the pass-through charges from carriers or terminals” (Exceptions Brief at 9), and “TPG is entitled to full reparations in the entirety of the amounts paid—the pass-through charges and the improper markups” (Exceptions Brief at 8). In short, TPG’s arguments are incongruous and irreconcilable.

TPG also clings to its anecdotal “evidence” that a single, other service provider, on a single, other occasion, moved TPG’s containers (in TPG’s subjective view) more efficiently. (Exceptions Brief at 9.) Even if TPG had provided credible evidence of such an occurrence, this would not demonstrate any Shipping Act violation on the part of Respondents. Indeed, it is not even probative of an alleged violation of the Shipping Act. The Presiding Officer correctly considered TPG’s so-called “evidence” and gave it no weight. (Initial Decision at 44.)

As explained more fully below, TPG’s Exceptions to the Initial Decision fail in all respects. The Commission should overrule TPG’s Exceptions and affirm the Initial Decision in large part.¹

II. LAW AND ARGUMENT

A. **TPG Did Not Make A Prima Facie Showing Of Any Shipping Act Violation, But Even If It Did, Respondents’ Evidence Was More Than Sufficient To Rebut That Prima Facie Case.**

TPG raises a number of supposed errors in the Initial Decision, each of which is discussed below, but its central claim appears to be that “TPG met its initial burden to make a prima facie case that the charges were unreasonable,” so the burden of proof shifted back to Respondents to prove the reasonableness of their conduct. (Exceptions Brief at 4.) TPG is incorrect that it met its

¹ The Initial Decision should be affirmed except as to the one, narrow erroneous finding of fact and conclusion of law identified and explained in Respondents’ Memorandum of Exceptions, filed on October 4, 2024.

initial burden, but even if TPG had, Respondents' ample evidence thoroughly rebutted any evidence of unreasonableness.

The burden of proof to prevail in a proceeding to enforce the Shipping Act is a preponderance of the evidence standard. 5 U.S.C. § 556(d); 46 C.F.R. § 502.203; *Maier Terminals, LLC v. Port Auth. of N.Y. & N.J.*, Dkt. No. 08-03, 2014 WL 9966245, at *14 (FMC Dec. 17, 2014). As has been well-established by the Commission, this means that TPG bears the burden of proving that its allegations are more probable than not. *Crocus Investments, LLC v. Marine Transport Logistics, Inc.*, Dkt. No. 15-04, 2021 WL 3732849, at *3-4 (FMC, Aug. 18, 2021) (Order Affirming Initial Decision on Remand).

Further, in a Shipping Act case, the burden of production begins with the complainant, who must introduce sufficient evidence to establish a *prima facie* case. If a complainant introduces sufficient evidence, the burden of production then shifts to the respondent, who must then identify evidence that justifies its challenged conduct. *River Parishes Company, Inc. v. Ormet Primary Aluminum Corporation*, Dkt. 96-06, 1999 WL 125991, at *23 (FMC, Feb. 3, 1999).

Regardless of the shifting burden of production, the complainant at all times retains the burden of persuasion and proving its allegations. *Santa Fe Discount Parking v. Board of Trustees*, 3 F.M.C.2d, 59, 68 Dkt. No. 14-06 (FMC, April 16, 2021); *see also Marine Repair Services of Maryland, Inc. v. Ports America Chesapeake, LLC*, Dkt. No. 11-11, 2013 WL 9808672, at *31 (ALJ, Jan. 10, 2013). Moreover, if complainant fails to make out its *prima facie* case, the burden of production never shifts to the respondents, and no corresponding need arises for a respondent to justify the practices in question. The inquiry into the matter simply ends. *River Parishes Company, Inc. v. Ormet Primary Aluminum Corporation*, Dkt. 96-06, 1999 WL 125991, at *23 (FMC, Feb. 3, 1999).

Here, as explained below, TPG failed to make even a *prima facie* case of Shipping Act violations against Respondents. Thus, the burden of production never shifted to Respondents in the first place. Further, even if TPG had established a *prima facie* case with respect to any particular act or omission of Respondents, Respondents produced more than ample evidence to rebut that *prima facie* case, which is evident from the Initial Decision. Before the Presiding Officer and now before the Commission, TPG repeatedly suggests that the mere fact that demurrage charges were incurred means that those charges were unreasonable under the Shipping Act. However, TPG never met its original burden of production. Therefore, the Commission should reject TPG's contention.

B. TPG Did Not Raise "Lack Of Appointments" As A Basis For Its Recovery.

In its Exceptions Brief, TPG argues for the first time ever that it supposedly "produced evidence that there was a lack of appointments available during the relevant period of time." (Exceptions Brief at 4.) Accordingly, TPG argues that "Respondents had a burden to come forward with evidence to show that demurrage charges have not been associated with lack of appointments, which they simply did not do." (*Id.*) TPG has never raised this issue before: not in its Complaint, not in its Opening Brief, and not in its Reply Brief. Nothing in the body of TPG's Opening Brief or Reply Brief addresses lack of appointments as a basis to avoid demurrage charges. This failure dooms TPG's new argument before the Commission. Having presented no evidence of "lack of appointments," TPG in no way met its initial burden.

TPG misleadingly claims that "[s]pecific to the issue of purported lack of appointments, TPG addressed this issue in its Opening Brief and Reply Brief (Exceptions Brief at 6) (citing Opening Brief at 19, n. 46²; Reply Brief at 24, n. 4).) Footnote 45 in TPG's Opening Brief is

² TPG presumably intended to cite to footnote 45 in its Opening Brief, but mistakenly cited footnote 46.

merely a citation in support of the proposition that “[e]ach day that Epic and Omni held each TPG container hostage constitutes a separate violation of 41102(c), consistent with Commission practices in other case.” (TPG’s Opening Brief at 19.) One of the citations in that footnote refers to a case in which “there were insufficient appointments available,” but TPG cites that case only for its “separate violation” argument as it pertains to containers allegedly held hostage. TPG did not substantively raise—let alone provide evidentiary support for or otherwise address—a supposed “lack of appointments” in its briefing before the Presiding Officer.

TPG may not now raise arguments or issues that it failed to raise prior to the Initial Decision. *See, e.g., Shipco Transport Inc. v. JEM Logistics, Inc.*, FMC Dkt. No. 12-06, 2013 WL 9808695, at *3 (FMC Aug. 21, 2013) (affirming an initial decision on default where the respondent failed to raise a defense in a timely fashion and instead “first raised the defense after the Initial Decision had been issued and did not provide evidentiary support of his claim.”). TPG’s “lack of appointments” argument should be deemed waived.

Further, the case on which TPG relies, *Hapag-Lloyd, A.G. and Hapag-Lloyd (America) LLC-possible Violations of 46 U.S.C. § 41102(c)*, Docket No. 21-09, 2022 WL 1239377 (ALJ April 22, 2022), was very different from this case. There, the Presiding Officer considered whether civil penalties should be assessed based on a vessel operating common carrier’s (“VOCC”) practice of assessing *detention* charges when the VOCC (1) failed to provide an equipment return location, or (2) when appointments were unavailable for container return within the VOCC’s allocated free time. *Hapag-Lloyd*, 2022 WL 1239377 at *1. The “decision addresse[d] the question of whether it is appropriate to impose detention when empty containers cannot be returned because there are insufficient appointments available.” *Id.* Here, the vast majority of the charges TPG disputes are *demurrage* charges incurred *before* containers were released from the ports or

terminals. No evidence in this case exists of any detention charges accrued due to lack of available return appointments. *Hapag-Lloyd* is inapposite.

Even if the Commission were to consider this new argument, it should reject it just as the Presiding Officer did. The Presiding Officer rightly concluded that “the evidence shows that congestion impacted shipping during this time,” but that “Respondents reasonably conveyed this to TPG” during a “period of *unprecedented* strain on shipping.” (Initial Decision at 42) (emphasis added).) Thus, the lack of appointments and associated delays were “unavoidable,” and were not caused by any failure of Respondents. (*Id.* (“Simply showing that demurrage was incurred is not sufficient to establish that the demurrage was unreasonable.”).) To the contrary, these factors were entirely outside of Respondents’ control.

C. The Presiding Officer Had No Basis To Conclude That Respondents’ Supporting Documentation “Lacked Credibility.”

The Initial Decision correctly concluded that “third-party invoices or credit card receipts are sufficient to show that respondents paid demurrage charges for TPG’s containers for the amounts reflected in the documents.” (Initial Decision at 42.) In contrast to its originally stated position, TPG now asserts that “whether Respondents *paid* the demurrage charges is not the issue. The central question is whether the charges were unjust and unreasonable—not whether the charges were paid.” (Brief at 5; *cf.* TPG’s Opening Brief at 23 (“Epic and Omni cannot establish that they themselves paid these charges.”).)

According to TPG, the Presiding Officer failed to “assess the reasonableness of detention and demurrage charges” under 46 C.F.R. § 545.5. (Brief at 5.) Here, again, TPG did not meet even its initial burden: the Presiding Officer did, in fact consider the voluminous record of thousands of pages of evidence submitted by TPG, and correctly concluded that “TPG has not provided evidence that delays in picking up containers were the fault of the Respondents and such

fault will not be presumed merely from the existence of demurrage charges.” (Initial Decision at 41.) TPG’s reliance on this bald assertion without any actual evidence is emblematic of its inability to provide testimony during its own corporate deposition to explain what precisely was offensive about any particular charge. For example, when asked to explain TPG’s basis for disputing certain charges included in its damages spreadsheet, TPG’s corporate representative stated that “**it could be hypothetical because I don’t know.**” (Basiri Tr. at 83:15 (CApp010404) (emphasis added).)

The following exchange is illustrative:

Q. What is the amount of TPG’s claimed damages?

A. My understanding is an initial projection, I don’t remember the exact dollar, but it was above a million dollars as an initial assessment.

Q. What is the amount of TPG’s claimed damages today?

A. Still ongoing. I do not have a number. We are in the process of assessing that.

Q. TPG doesn’t have a specific dollar amount that it is seeking to recover today; is that right?

A. Not at the moment. It’s still ongoing.

(Basiri Tr. (Sep. 15) at 44: 16-25; 45: 1 (CApp010463).) TPG also could not identify which charges it paid as a result of Respondents allegedly holding cargo hostage:

Q. Which of the invoices appearing on this tab were paid as a result of Epic or Omni allegedly holding cargo hostage?

A. At this moment, I can’t identify those.

Q. You understood that you were here to testify as to TPG’s claimed damages arising out of the Bay Park project, right?

A. Yes.

(*Id.* at 51:17-24 (CApp010465).)

Likewise, in its Exceptions Brief, TPG cites no evidence in the record in support of its argument that Respondents’ supporting documents were insufficient or lacked credibility. Instead,

TPG merely cites its arguments from its Opening Brief and its Reply Brief, and page 48 of the Initial Decision in support of the proposition that “Respondents failed to provide evidence with sufficient detail.” (Exceptions Brief at 7.) However, neither citation breathes life into this empty assertion. For example, page 48 of the Initial Decision only addressed the sufficiency of Respondents’ post-OSRA-22 documentation. (*See* Initial Decision at 48.) TPG does not include any record citations in support of its arguments. As a further example, with no citation to its appendix or any other document in the record, TPG asserts that “the ALJ disregarded evidence that Respondents had additional evidence, such as carrier invoices and screen shots that would have shown the level of detail requested by TPG to support its claims[.]” (Exceptions Brief at 6.) In fact, the Presiding Officer considered and rejected this claim, finding that TPG failed to meet its burden. (*See* Initial Decision at 40 (“It is not clear what documents would ‘explain why the containers were at the terminal for days.’”); *Id.* at 45 (“it is not clear what the invoices would show that is not already listed on the credit card receipts and other documentation provided.”); *Id.* at 41 (“It is similarly not clear what documents would show “congestion at the port” to TPG’s satisfaction.”).)

The Commission is “not required to engage in the type of review that Complainants themselves are required—but choose not—to do.” *Nnabugwu Chinedu Andrew, Avers Logistics, LTD. et al. v. Marine Transport Logistics, Inc.*, Docket No. 20-12, 2022 WL 4482578, at *2 (FMC Sep. 22, 2022) (complainant’s “exceptions” were deficient because complainant “failed to comply with the Commission’s particularity requirements set forth in 46 C.F.R. § 502.227(a)”; 46 C.F.R. § 502.227(a)(1) (exceptions “shall indicate with particularity alleged errors, [and] shall indicate transcript page and exhibit number when referring to the record[.]”).

TPG's Exceptions Brief manifestly does not comply with the Commission's particularity requirements, and the Commission should decline "to engage in the type of review that [TPG] . . . was required" to do but chose not to. The Commission should affirm the Initial Decision as it pertains to the sufficiency of Respondents' supporting documentation.

D. The Presiding Officer Correctly Concluded That Respondents Reasonably Communicated With TPG About Anticipated Congestion And Delays.

The Presiding Officer correctly found that Respondents "reasonably conveyed" to TPG "that congestion impacted shipping during" the parties' relationship. (Initial Decision at 41.) TPG claims that "Respondents failed to present evidence showing they sufficiently and regularly communicated issues regarding congestion or delays, save for a single email stating they would 'communicate and address the situations as they arise.'" (Exceptions Brief at 7). Not only does such a statement reflect Respondents' good customer service but, contrary to TPG's "single email" claim, the Initial Decision identifies numerous examples of Respondents' regular communications with TPG, and further highlights how TPG's demands were unreasonable. TPG likewise failed on this point to meet its initial burden of production.

However, even if TPG had met its initial burden, Respondents produced ample evidence, much of which was highlighted in the Initial Decision, to rebut TPG's case. The Presiding Officer found, for example, that "Respondents communicated directly with their clients about the congestion at the ports." (Initial Decision at 41.) The Presiding Officer cited just a few of many examples of such communications, including Epic's email footer, which contained a prominently displayed statement about the "congestion," "delays, and "diminished capacity" in "all the major ports (air and ocean) in North America," which factors may cause "additional fees, surcharges including the standard per diem, demurrage, chassis, chassis splits, pre-pulls and weekend pickups/deliveries, and storage." (*Id.* at 41-42.) Further, the Presiding Officer cited evidence

showing that TPG itself was well aware and understood these factors. (*Id.* at 41) (citing CApp 10701 (“[w]e understand that congestion may affect deliveries to and from the port and our expectation is that Omni will act reasonably and efficiently when performing its obligations.”).) The Presiding Officer further concluded, correctly, that TPG “acknowledged that Respondents did provide explanations, such as lack of appointments, congestion, and chassis shortages,” but TPG simply refused to accept these explanations. (*Id.* at 40 (citing CApp 10405; CApp 10390-91).)

The evidence was clear that Respondents actively communicated with TPG and provided TPG with all available information. More fundamentally, however, TPG does not cite any case holding that communication failures—like the ones TPG alleges—amount to a violation of the Shipping Act. The Initial Decision should be affirmed with respect to these issues.

E. TPG Did Not Demonstrate That The Demurrage Charges Were “Avoidable.”

TPG’s argument in sections II.C. and II.D. of its Exceptions Brief is a red herring. TPG laments the Commission’s application of the “direct purchaser rule,” and suggests that somehow Respondents should be required to assert claims against the carriers or terminals who originally assessed demurrage charges. No such rule exists. TPG brought this case against Respondents, and the Presiding Officer evaluated and resolved the claims between TPG and Respondents. Respondents are not the parties claiming that any charges are unreasonable; TPG is that party. Respondents had no obligation to dispute any charges. Frustrated with this unavoidable reality, as it did in its Opening Brief, TPG essentially asks the Commission to relieve TPG of its burden of proof. (Exceptions Brief at 8 (“Placing the burden on TPG here enables Respondents to freely engage in an unjust and unreasonable practices as there will be no consequences.”).) The Commission should do the same as the Presiding Officer: hold TPG to its burden of proof which, as the Presiding Officer found, TPG woefully failed to meet.

TPG's argument is telling: it claims that "the totality of the charges is unreasonable—whether those are pass-through or direct charges." (Exceptions Brief at 9.) In other words, TPG seems to believe that *any* demurrage charge is unreasonable. As the Presiding Officer put it: "TPG seems to think that all demurrage charges are inherently unreasonable, even where the record shows that Respondents paid the charges on TPG's behalf pursuant to their tariff. (Initial Decision at 44; *see also id.* at 41 (construing TPG's position as requesting that "fault . . . be presumed merely from the existence of demurrage charges.")) The Presiding Officer correctly found that "the evidence shows that these [demurrage] charges were incurred during a period of congestion and that demurrage charges cannot always be anticipated." (Initial Decision at 44.) In short, TPG presented no probative evidence that any of the demurrage charges were "avoidable." TPG fails again to meet its initial burden.

In fact, the only evidence TPG *did* present on this point was properly given no weight. The Presiding Officer noted that TPG "never actually compared Respondents' charges to another party performing transportation on the 'same dates, same locations'" (Initial Decision at 44), and correctly concluded that "the Shipping Act prohibits conduct that is unreasonable, not conduct just because it may be less efficient" (*Id.*). This holding is entirely sensible as TPG offers no evidence whatsoever to permit the Presiding Officer or the Commission to engage in any comparative analysis. Any such evidence would necessarily have to be close—if not identical—in time, place, and circumstances to the actual charges imposed. Otherwise, the two examples are simply incommensurate. In short, TPG again relies on assertion in lieu of providing actual evidence, and utterly fails to meet its burden of proof *or* production.

TPG nevertheless invokes *C.H. Leavell & Co. v. Hellenic Lines, Ltd.*, 13 F.M.C. 76, 89 (FMC 1969), for the proposition that, "[i]f the NVOCC is unable to produce the invoices," the

Presiding Officer was required to “look at other factors such as whether the charges were similar to those assessed by other NVOCCs.” (Exceptions Brief at 9 (citing *C.H. Leavell & Co.*, 13 F.M.C. at 89).) This rule is inapposite for two reasons. First, Respondents did produce invoices that the Presiding Officer found were “sufficient to show the amounts Respondents paid on TPG’s behalf,” and that the invoices show “critical information, including the container number, steamship line, vessel, voyage, discharge date, FTE date, and payment information.” (Initial Decision at 40.) Thus, the circumstances did not trigger *C.H. Leavell*’s purported rule requiring a comparison to other providers. Second, the Presiding Officer *did* consider the scant evidence that TPG presented on this point and determined, as discussed above, that the evidence was not probative of any Shipping Act violation. Finally, the rule in *C.H. Leavell* is not a well-established, widely adopted rule of the Commission. Rather, in that case, the Commission merely “recommend[ed]” that the Small Claims Officer review whether certain charges were similar to charges of other NVOCCs. *C.H. Leavell & Co.*, 13 F.M.C. at 89.

TPG presented no evidence of “avoidable” charges, utterly failing to meet its initial burden. The Initial Decision should be affirmed as to these findings.

F. TPG’s Request For A Cease-And-Desist Order Was Properly Denied.

TPG’s argument about its entitlement to a cease-and-desist order is fundamentally flawed at best, and disingenuous at worst. TPG argues that, because the Initial Decision found that Respondents’ “coercive collection practices were part of [Respondents’] written policies and procedures,” this fact “alone meets the standard that Respondents unlawful conduct is ‘ongoing; or ‘likely to resume,’ thus warranting [the] entry of a cease-and-desist order.” (Exceptions Brief at 10.) First, the so-called “coercive collection practices” described in the Initial Decision involved Respondents’ lawful exercise of a contractual lien on cargo in its possession. (*See generally*, Respondents’ Memorandum of Exceptions to the Initial Decision, filed Oct. 4, 2024.) Second,

there is no dispute that the parties concluded their business relationship in May 2022 (RApp1-4), and that Epic released all of TPG's containers shortly thereafter (*Id.*). Thus, Respondents no longer have any of TPG's containers in their possession, which has been true for two and a half years. So no risk exists whatsoever that any alleged "coercive collection practice" is "ongoing" or "likely to resume," because the nature of those alleged "coercive collection practices" was the exercise of a contractual lien on TPG's cargo in Respondents' possession. TPG is not entitled to a cease-and-desist order.

Further, the Presiding Officer found that the TPG was not entitled to any reparations because the amounts in which TPG was damaged was less than the undisputed amount that TPG *owes* Respondents, the vast majority of which is comprised of freight charges.

III. CONCLUSION

The Commission should affirm the Initial Decision, except as to the very narrow findings of fact and conclusions of law addressed in Respondents' Memorandum of Exceptions. TPG failed to establish Respondents' alleged Shipping Act violations, and failed to establish its entitlement to the reparations it now seeks. The Commission should put an end to TPG's claims, which were thoroughly litigated and rightly rejected.

Dated: October 28, 2024

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 28th day of October 2024, a true and correct copy of the foregoing was served via electronic mail on:

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